

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stephanie Mleczkowski	Team: Team # 3	CCRB Case #: 201405032	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 05/10/2014 6:10 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/10/2015	Precinct: 67		
Date/Time CV Reported Fri, 05/16/2014 11:05 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 05/22/2014 2:38 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			NARCBBS
2. DT2 Edward McBride	01256	896139	NARCBBS
3. DT3 Noel Lawrence	06498	938826	NARCBBS
4. Officers			NARCBBS
5. An officer			NARCBBS
6. An officer			NARCBBS
7. An officer			NARCBBS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Jean Desir	03064	931633	NARCBBS
2. DT3 Douglas Corso	04824	936392	NARCBBS
3. DT3 Idris Mojeed	02339	930752	NARCBBS
4. DT3 Albert Jackson	03573	933869	NARCBBS
5. DT3 Tearle Connell	1053	932484	NARCBBS
6. DT3 Ricardo Joseph	5406	938736	NARCBBS
7. DT3 Christophe McGuinness	02777	940452	NARCBBS

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered and searched § 87(2)(b) in Brooklyn.	A . Exonerated
B . DT2 Edward McBride	Force: Det. Edward McBride used a chokehold against § 87(2)(b)	B . Unfounded
C . DT2 Edward McBride	Force: Det. Edward McBride restricted § 87(2)(b)'s breathing.	C . Unfounded
D . DT2 Edward McBride	Force: Det. Edward McBride used physical force against § 87(2)(b)	D . Exonerated
E . An officer	Force: An officer struck § 87(2)(b) with a police helmet.	E . Unfounded

Officer(s)	Allegation	Investigator Recommendation
F . DT3 Noel Lawrence	Force: Det. Noel Lawrence pointed his gun at § 87(2)(b)	F . Exonerated
G . DT3 Noel Lawrence	Discourtesy: Det. Noel Lawrence spoke rudely to § 87(2)(b)	G . Unsubstantiated
H . Officers	Force: Officers used physical force against § 87(2)(b) and § 87(2)(b)	H . Officer(s) Unidentified
I . An officer	Force: An officer struck § 87(2)(b) with a ballistic shield.	I . Officer(s) Unidentified
J . An officer	Discourtesy: An officer spoke rudely to § 87(2)(b) and § 87(2)(b)	J . Officer(s) Unidentified

Case Summary

On May 10, 2014 at 6:10 a.m., multiple officers assigned to Narcotics Borough Brooklyn South entered and searched § 87(2)(b)'s three-story home, located at § 87(2)(b) in Brooklyn, pursuant to a valid search warrant (**Allegation A**). While lying in bed, § 87(2)(b) was awoken to Det. Edward McBride of Narcotics Borough Brooklyn South placing his forearm into his neck and windpipe, restricting his breathing (**Allegations B and C**). Det. McBride then threw § 87(2)(b) to the floor, placed his knee into his back and punched him in his right eye once (**Allegation D**). Next, an officer, who remains unidentified, removed his helmet and hit § 87(2)(b) in his right eye (**Allegation E**), which caused a laceration under his right eyebrow.

Subsequently, § 87(2)(b) attempted to flee the residence through a rear door, however an officer, identified via investigation as Det. Noel Lawrence of Narcotics Borough Brooklyn South, met § 87(2)(b) outside of the home, pointed his gun towards him (**Allegation F**) and told him to "Get the fuck back up (**Allegation G**).” Next, officers who remain unidentified punched § 87(2)(b) in the back of the head upon reentering the residence (**Allegation H**).

An officer who remains unidentified then hit § 87(2)(b) with a shield and threw him to the floor (**Allegation I**). § 87(2)(b) then felt a foot on his back, his ankle was stepped on and he was handcuffed (**within Allegation H**).

While near the prisoner van, an officer who remains unidentified told § 87(2)(b) and § 87(2)(b) "I don't give a fuck about your feelings (**Allegation J**).” All three civilians were brought to the 67th Precinct stationhouse, where their arrests were processed.

Civil, Mediation and Criminal Histories

As of March 20, 2015, which is past the 90-day filing deadline, a notice of claim had not been filed in regards to this incident (encl. R34).

As a result of the chokehold allegations, the injuries sustained and the arrests made as a result of the incident, this case was deemed unsuitable for mediation.

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (encl. C1-C3).
- Det. McBride has been a member of the NYPD for 25 years and there are four substantiated allegations against him, § 87(2)(g). In case number 9704517, threat of arrest, search, and retaliatory arrest allegations were substantiated against him; in case number 9902423 a force allegation was substantiated against him.
- Det. Lawrence has been a member of the NYPD for 9 years and there are no substantiated allegations against him. § 87(2)(g)

NYPD Documentation

Confirmation of Search Warrant:

Narcotics Borough Brooklyn South confirmed that Kings County search warrant number § 87(2)(b) was obtained on § 87(2)(b) and was valid on the date of the incident, May 10, 2014, inside of § 87(2)(b) in Brooklyn. The proof of affidavit was sworn before Det. Edward McBride of Narcotics Borough Brooklyn South. The warrant authorized the officers to enter forcibly without prior notice. Therefore, this was no-knock warrant (encl. N7-N8).

Search Warrant Plan:

The aforementioned documentation (encl. N14) was prepared in order to execute a search warrant at § 87(2)(b) second floor. The plan notes that Sgt. Jean Desir was the entry supervisor, Det. McBride was assigned to Bunker #1, Det. Douglas Corso was assigned to Bunker #1 security, Det. Albert Jackson was assigned to Ram/Cuff toss, Det. Lawrence was assigned to A/C cuff toss, Det. Essence Jackson and PO Katrina Forrester were assigned to front security. Det. Tearle Connell was assigned to Bunker #2 and wore a bunker shield and heavy vest; Det. Joseph was assigned to Bunker security #2 and wore a heavy vest and helmet.

67th Precinct, May 10, 2014, Tour 1 Command Log:

The aforementioned documentation (encl. N1) indicates that at 9:10 a.m., the arrests of § 87(2)(b) and § 87(2)(b) were processed at the 67th Precinct stationhouse. Their physical/mental conditions were noted as apparently normal. Sgt. Desir is listed as the supervisor approving the arrests. It is documented that solely § 87(2)(b) requested medical attention, § 87(2)(g) § 87(2)(g)

Arrest Reports for § 87(2)(b) and § 87(2)(b)

The aforementioned documentation notes that the above individuals were arrested on May 10, 2014 at 6:10 a.m., within § 87(2)(b) by Det. McBride. They were charged with § 87(2)(b). According to this documentation, force was not used in § 87(2)(b) s and § 87(2)(b) s arrests; force was solely used in § 87(2)(b) s arrest. Sgt. Desir approved these arrests (encl. H4-H12).

Arrest Photographs for § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) s arrest photograph captured a laceration just beneath his right eyebrow (encl. N25). The arrest photographs for § 87(2)(b) and § 87(2)(b) do not depict any injuries to them (encl. N26-N27).

§ 87(2)(b) s Medical Treatment of Prisoner Report

The undersigned investigator requested the above document from the 67th Precinct on July 9, 2014, however the CCRB was informed that this document was not on file at that command. It was requested from Brooklyn Central Booking on February 11, 2015 and on April 10, 2015 the CCRB was informed that this documentation was not available at this command, since § 87(2)(b) was arraigned in Manhattan. On April 10, 2015, this document was requested from Manhattan Central Booking and it was finally received on April 23, 2015.

§ 87(2)(b)

§ 87(2)(b)

Correctional Health Services Prescreening Form

§ 87(2)(a) PHL § 18(6)

Attempts to obtain the New York City Fire Department Ambulance Call Report

On September 16, 2014 and February 20, 2015, the undersigned investigator requested the above documentation. On April 3, 2015, the undersigned investigator received a letter from the New York City Fire Department, which stated that this document was unavailable.

Criminal Court Complaint against

§ 87(2)(b) **and** § 87(2)(b)

The aforementioned documentation notes that Det. Christopher McGuinness of Narcotics Borough Brooklyn South observed § 87(2)(b) hold his bedroom door closed while Det. McGuinness attempted to gain entry into that room. It notes that as Det. McGuinness entered the bedroom, § 87(2)(b) punched and pushed Det. McGuinness to prevent himself from being handcuffed (encl. N9-N13).

Finding and Recommendations

Allegations Not Pled

§ 87(2)(b) alleged that a piece of furniture was pushed into his wall, causing a hole in it.

§ 87(2)(b) alleged that items were broken in his home, for which he did not elaborate because he was uncooperative in subsequent contact attempts as a result of this incident. § 87(2)(g)

Identification of Subject Officers

§ 87(2)(g)

§ 87(2)(b) described the officer who removed his helmet and hit him in the right eye with it as a black man, taller than 5'10" tall, with a big build and a short Caesar haircut. According to the Search Warrant Plan, Det. Tearle Connell was assigned to Bunker #2 and wore a bunker shield and heavy vest; Det. Joseph was assigned to Bunker security #2 and wore a heavy vest and helmet. Det. Connell is a § 87(2)(b) black man; Det. Joseph is a § 87(2)(b) black man. The pedigree information for both of these officers somewhat corresponds to the physical description that § 87(2)(b) provided for this subject officer. Both officers stated that they wore helmets and they denied using the alleged force. § 87(2)(g)

Det. Lawrence admitted to interacting with § 87(2)(b) § 87(2)(g)

While Det. McBride and Det. Corso stated that they apprehended § 87(2)(b) § 87(2)(b) was unable to provide a physical description of the officers who allegedly used force against him.

§ 87(2)(g)

Allegation H includes § 87(2)(b)'s allegation that he felt a foot in his back and his ankle was stepped on, by an officer whom he did not see. Additionally, § 87(2)(b) could not provide a physical description for the officer who allegedly hit him with a shield. § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) stated that an officer, who remains unidentified, told them "I don't give a fuck about your feelings." § 87(2)(b) named Det. McBride as the alleged subject officer of this allegation and described him as a white man in his 50s, 5'7" tall, with a heavy build and was plain clothed. The description that § 87(2)(b) provided of Det. McBride closely corresponds to the pedigree information listed on his NYPD Single Officer Photograph, which notes that he is a white man, § 87(2)(b), with a heavy build and § 87(2)(b).

§ 87(2)(g)

the description of Det. McBride: a black man, with short black hair, 5'7"-5'8" tall, in his late thirties, with an average build and plain clothed. § 87(2)(g)

Allegation A- Abuse of Authority: Officers entered and searched § 87(2)(b) in Brooklyn.

It is undisputed that officers assigned to Narcotics Borough Brooklyn South entered and searched § 87(2)(b) in Brooklyn on May 10, 2014.

The Narcotics Borough Brooklyn South confirmed that a search warrant was in effect for the place of occurrence on the incident date.

As per New York State Criminal Procedure Law 690.50 (encl. 1V), officers may forcibly enter and search a location, without notice, pursuant to the instructions and temporal restrictions enumerated on a valid search warrant.

§ 87(2)(g)

, it is recommended that **Allegation A** be closed as **exonerated**.

Allegation B- Force: Det. Edward McBride used a chokehold against § 87(2)(b)

Allegation C-Force: Det. Edward McBride restricted § 87(2)(b)'s breathing.

§ 87(2)(b) alleged that while he was lying in bed he was awoken by Det. McBride, who had his forearm placed into § 87(2)(b)'s neck and windpipe, which restricted his breathing. Despite that § 87(2)(b) was present for this portion of the incident, he did not allege the aforementioned force. § 87(2)(b) was not present for this portion of the incident.

Det. McBride denied placing his arm around or on § 87(2)(b)'s neck. Det. Corso and Sgt. Desir denied that these allegations occurred. Det. Mojeed, Det. Jackson, Det. Lawrence, Det. Connell, Det. Joseph and Det. Christopher McGuinness were not present for this portion of the incident.

The Medical Treatment of Prisoner Report and the Correctional Health Services Prescreening Form completed for § 87(2)(b) in connection with this incident did not indicate that he sustained any injuries to his neck area, or that he complained of pain to his neck or restricted or abnormal breathing (encl. N28, MR30). On April 3, 2015, the undersigned investigator received a letter from § 87(2)(b) of the New York City Fire Department, which indicated that the Ambulance Call Report completed in connection with this incident was unable to be located (encl. MR33).

Det. McBride and Det. Corso provided § 87(2)(g) testimony that § 87(2)(b) was lying in bed, under a blanket and that when they lifted the blanket in order to apprehend him, § 87(2)(b) punched and kicked the officers. Sgt. Desir § 87(2)(g) stating that § 87(2)(b) resisted arrest by flailing his arms and kept his hands beneath his stomach while lying down. Det. McBride stated that § 87(2)(b) head-butted him in the eye. Furthermore, while Det. McBride did not complete Line of Duty Injury paperwork in connection with this incident, he showed the undersigned investigator photographs of the injuries, stored on his cellular telephone that he sustained during this incident, which demonstrated that he had a black right eye and lacerations near his right eye and nose and bruising on his cheek.

§ 87(2)(g)

§ 87(2)(g)

. It is therefore recommended that **Allegations B and C** be closed as **unfounded**.

Allegation D- Force: Det. Edward McBride used force against § 87(2)(b) § 87(2)(b) alleged that Det. McBride threw him to the floor, placed his knee in his back and punched him once in his right eye. Despite that § 87(2)(b) was present for this portion of the incident, he did not allege the aforementioned force. § 87(2)(b) was not present for this portion of the incident.

Det. McBride admitted to punching § 87(2)(b) in order to gain his compliance while handcuffing him, however he could not recall if he punched him in the eye. Det. Corso, Sgt. Desir and Det. Connell denied that these allegations occurred. Det. Mojeed, Det. Jackson, Det.

Lawrence and Det. McGuinness were not present for this portion of the incident. Det. Joseph stated that he was not present in the room in which § 87(2)(b) was apprehended.

§ 87(2)(b), § 87(2)(a) PHL § 18(6)

On April 3, 2015, the undersigned investigator received a letter from § 87(2)(b) of the New York City Fire Department, which indicated that the Ambulance Call Report completed in connection with this incident was unable to be located (encl. MR33).

NYPD Patrol Guide Procedure 203-11 states that officers can use the minimal force necessary to effect an arrest of a violent or resisting individual (encl. 1T-1U)

Det. McBride and Det. Corso provided § 87(2)(g) testimony that § 87(2)(b) was lying in bed, under a blanket and that when they lifted the blanket in order to apprehend him, § 87(2)(b) punched and kicked the officers. Sgt. Desir § 87(2)(g) stating that § 87(2)(b) resisted arrest by flailing his arms and kept his hands beneath his stomach while lying down. Det. McBride stated that § 87(2)(b) head-butted him in the eye. Furthermore, while Det. McBride did not complete Line of Duty Injury paperwork in connection with this incident, he showed the undersigned investigator photographs of the injuries, stored on his cellular telephone, that he sustained during this incident, which demonstrated that he had a black right eye and lacerations near his right eye and nose and bruising on his cheek.

§ 87(2)(g)

As such, it is recommended that **Allegation D** be closed as **exonerated**.

Allegation E- Force: An officer struck § 87(2)(b) with a police helmet.

§ 87(2)(b) alleged that an officer, who remains unidentified, removed his helmet and hit him in his right eye with it. § 87(2)(b) did not raise this allegation and § 87(2)(b) was not present for this portion of the incident. Det. McBride stated that other than the force that he used against § 87(2)(b) he did not see any additional force used against § 87(2)(b). Det. Corso did not hear § 87(2)(b) complain of being struck in the eye. Sgt. Desir stated that he did not have any physical contact with § 87(2)(b). Det. Mojeed, Det. Jackson, Det. Lawrence and Det. McGuinness were not present for this portion of the incident. Det. Connell and Det. Joseph denied using and witnessing this alleged force.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

, it is recommended that **Allegation E** be closed as **unfounded**.

Allegation F- Force: Det. Noel Lawrence pointed his gun towards § 87(2)(b)

§ 87(2)(b) alleged that when he attempted to flee the residence through a rear door, Det. Lawrence met § 87(2)(b) outside of the home and pointed his gun towards him. Det. Lawrence admitted to pointing his gun towards § 87(2)(b) § 87(2)(b) Det. McBride, Det. Corso, Det. Jackson, Sgt. Desir, Det. Mojeed, Det. Connell, Det. Joseph and Det. McGuinness were not within the backyard of the residence at the time of these allegations.

According to *PD v. Gliner*, “The Department permits an officer broad discretion to display his weapon whenever he feels that his life or the life of another is endangered.” (encl. 1A-1S).

§ 87(2)(g)

it is recommended that **Allegation F** be closed as **exonerated**.

Allegation G- Discourtesy: Det. Noel Lawrence spoke rudely towards § 87(2)(b)

§ 87(2)(b) alleged that Det. Lawrence told him to “Get the fuck back up.” Det. Lawrence stated that he did not use profanity towards § 87(2)(b) in fact he solely recalled stating to him “Police, search warrant execution!” § 87(2)(b) Det. McBride, Det. Corso, Det. Jackson, Sgt. Desir, Det. Mojeed, Det. Connell, Det. Joseph and Det. McGuinness were not within the backyard of the residence at the time of these allegations.

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **unsubstantiated**.

Allegation H- Force: Officers used force against § 87(2)(b) **and** § 87(2)(b)

Allegation I- Force: An officer struck § 87(2)(b) **with a ballistic shield.**

§ 87(2)(b) and § 87(2)(b) alleged that officers whom they could not describe and who remain unidentified punched § 87(2)(b) in the back of the head upon reentering the residence.

§ 87(2)(b) was not present for that portion of the incident, however he alleged that various force was used against him by multiple officers whom he could not describe. § 87(2)(b)

§ 87(2)(b) alleged that officers hit him with a shield and threw him to the floor. Next, § 87(2)(b) felt a foot in his back and an individual step on his ankle before he was handcuffed.

§ 87(2)(b) alleged that he felt blows to his body that reminded him of being “jumped,” but he could not describe what actions the officers took.

Det. McGuinness was the sole officer interviewed who admitted to seeing § 87(2)(b) during this incident; however he denied apprehending him or using the force alleged against him. He stated that he did not know which additional officers were within the vicinity of § 87(2)(b) and he denied witnessing any officers use the alleged force against him.

§ 87(2)(g)

_____. It is therefore recommended that **Allegations H and I** be closed as **officers unidentified**.

Allegation J- Discourtesy: An officer used profanity towards § 87(2)(b) and § 87(2)(b)
§ 87(2)(b) alleged that Det. McBride told him “I don’t give a fuck about your feelings.” § 87(2)(b) alleged that an officer who remains unidentified made the same statement to him and § 87(2)(b) did not raise this allegation. None of the officers interviewed admitted to hearing an officer make this statement.

§ 87(2)(g)

_____. Therefore, it is recommended that **Allegation J** be closed as **officer unidentified**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date